

JEFFREY S. GRAY # 5852
Utah County Attorney
CHAD E. GRUNANDER # 9968
RYAN MCBRIDE # 13079
LAUREN HUNT # 14682
DAVID STURGILL # 7995
CHRISTOPHER D. BALLARD # 8497
Deputy Utah County Attorneys
100 East Center, Suite 2100
Provo, Utah 84606
Telephone: (801) 851-8026
Email: dcourt@utahcounty.gov

IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**STATE’S OPPOSITION TO
DEFENDANT’S MOTION TO
CLASSIFY REPLY IN SUPPORT OF
MOTION TO EXCLUDE STILL
PHOTOGRAPHERS, TV CAMERAS
AND MICROPHONES FROM THE
COURTROOM AS PRIVATE**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State opposes Defendants’ Motion to Classify Reply in Support of Motion to Exclude Still Photographers, TV Cameras and Microphones from the Courtroom as Private (Dkt. 400). This Court should deny Defendant’s motion to classify his reply memorandum as non-public for essentially the same reasons as it should deny his motion to likewise classify his underlying motion.

ARGUMENT

This Court is well aware of the presumptively public nature of Defendant's reply memorandum and the standard that Defendant must satisfy to overcome that presumption. *See* Utah Code Jud. Admin. R. 4-202.02(1) & (2)(f); *id.* R. 4-202.04(6); *see also State v. Allgier*, 2011 UT 47, ¶¶ 10, 14-16, 258 P.3d 589. Defendant has again not rebutted that presumption with respect to his reply.

As explained in the State's opposition to Defendant's motion to classify the underlying motion to exclude cameras, the fact that the reply cites to the motion, which itself cites already public information, favors maintaining the reply's presumptively public status— not restricting access to it. *See Allgier*, 2011 UT 47, ¶ 17 (noting that already public nature of information contained in court filing “greatly diminished” any interest in protecting the document).

Moreover, Defendant incorrectly presumes that pretrial publicity will prejudice his right to a fair trial. As the United States Supreme Court has held, “pretrial publicity, even if pervasive and concentrated, cannot be regarded as leading automatically and in every kind of criminal case to an unfair trial.” *Nebraska Press Ass’n v. Stuart*, 427 U.S. 539, 565 (1976). On the contrary, courts have well-established processes for assessing and mitigating the effect of pre-trial publicity on potential jurors. *See State v. Allgier*, 2011 UT 47, ¶¶ 19-20, 258 P.3d 589. The Utah Supreme Court has recognized that even in highly publicized cases, a defendant's right to a fair trial can be protected “through the regular, time-honored processes for selecting jurors” like enlarging the venire of potential jurors,

utilizing a detailed juror questionnaire, and conducting a thorough voir dire of potential jurors. *Id.* ¶ 19.

The Court should also note that not all the pretrial publicity here has been adverse to Defendant. Much of the publicity has also created concerns for the State. A number of conspiracy theories about this murder have circulated worldwide. *See* Daniel Dale, *Fact check: The fake photos, false claims and wild conspiracy theories swirling around the murder of Charlie Kirk*, CNN, September 20, 2025, www.cnn.com/2025/09/20/politics/fact-check-charlie-kirk-murder; David Gilbert, *Why Conspiracy Theories Took Hold When Charlie Kirk Died*, Wired, October 29, 2025, www.youtube.com/watch?v=M_DCrfVp3uU; Lazar Berman, *Netanyahu rejects “insane” conspiracy theories that Israel was behind Charlie Kirk's assassination*, The Times of Israel, September 12, 2025, www.timesofisrael.com/netanyahu-pans-insane-conspiracy-theories-blaming-israel-for-charlie-kirk-killing. Keeping court proceedings as public as possible helps to quell and contradict the tide of misinformation, while “[e]xcessive administrative secrecy ... feeds conspiracy theories and reduces the public’s confidence in the government.” *Pub. Health & Med. Pros. for Transparency v. Food & Drug Admin.*, No. 4:21-CV-1058-P, 2022 WL 90237, at *1 (N.D. Tex. Jan. 6, 2022) (quoting *America After 9/11: Freedom Preserved or Freedom Lost?*: Hearing Before the S. Comm. on the Judiciary, 108th Cong. 302 (2003)).

Finally, and as repeatedly explained in the State’s oppositions to Defendant’s many motions to classify, whether the Court should restrict media access to these proceedings is an issue of significant public concern that should be litigated publicly. If, as Defendant

contends, media references have violated state law and this Court's decorum orders, those matters are of significant public interest.

CONCLUSION

For the foregoing reasons, the Court should deny the motion.

Dated March 6, 2026.

Utah County Attorney's Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

Counsel for Plaintiff

CERTIFICATE OF SERVICE

I certify that on March 6, 2026, I filed the foregoing **STATE’S OPPOSITION TO DEFENDANT’S MOTION TO CLASSIFY REPLY IN SUPPORT OF MOTION TO EXCLUDE STILL PHOTOGRAPHERS, TV CAMERAS AND MICROPHONES FROM THE COURTROOM AS PRIVATE** through the court’s electronic filing system, which served a copy on all counsel of record. I also emailed a copy to counsel for the interested news media as follows:

C. Michael Judd
mjudd@parsonsbehle.com

Jeffrey J. Hunt
jhunt@parrbrown.com

David C. Reymann
dreymann@parrbrown.com

Carissa A. Uresk
curesk@parrbrown.com

s/ Christopher D. Ballard
Christopher D. Ballard